

Case :- WRIT - C No. - 3571 of 2021

Petitioner :- Avneesh Kumar

Respondent :- State Of U.P. And 5 Others

Counsel for Petitioner :- Rajeev Kumar Singh, Jitendra Kumar

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi

Hon'ble Pankaj Naqvi, J.

Hon'ble Piyush Agrawal, J.

Heard Shri Rajeev Kumar Singh for the petitioner, learned Standing Counsel for the State - respondent no. 1 and Shri Ashutosh Dwivedi, holding brief of Shri Baleshwar Chaturvedi for respondent nos. 2 to 5.

Petitioner is aggrieved by the order dated 17.06.2019 passed by respondent no. 4 on the complaint made by respondent no. 6, by which laying of electricity line has been stopped.

Learned counsel for the petitioner submits that he had applied for electricity connection for running a tube-well having a load of 10 HP in plot no. 1044 on 20.02.2018 and has completed all the formalities as required under the Act. Petitioner is a co-sharer of plot nos. 1038 and 1044 measuring 0.7770 hectare situated in Village - Varna, Tehsil - Aliganj, District - Etah. On the said land, petitioner claims his right on the strength of a family settlement deed dated 27.09.2007. Thereafter, the process of electricity connection started by fixing poles, transformer, etc., but in the meantime, respondent no. 6, who has filed an Original Suit No. 323 of 2019 against the petitioner and his family members, made a complaint before respondent no. 4 regarding pendency of the original suit in respect of the plot in question, upon which respondent no. 4 has passed the impugned order dated 17.06.2019 directing not to charge/supply electricity over the petitioner's electricity connection.

Learned counsel for the petitioner submits that the impugned order has been passed without providing any opportunity or notice to the petitioner, which is a gross violation of the principles of natural justice. It is further submitted that respondent no. 4 has passed the impugned order ignoring the fact that no injunction/stay order has been granted by the lower court in the pending civil suit. It is lastly submitted that for redressal of his grievance, the petitioner has made a representation dated 21.06.2019 and a direction may be given for its expeditious disposal.

Shri Dwivedi submits that since there is a dispute with regard to

plot in question, petitioner is required to submit security in the shape of indemnity bond, along with certain other formalities, as per the provisions of U.P. Electricity Supply Code, 2005. He further submits that no useful purpose would be served by keeping this writ petition pending and the same be disposed of by giving appropriate direction to the respondent concerned.

This writ petition is disposed of with the direction to the respondent no. 4 to consider and decide the pending representation dated 21.06.2019, or a fresh representation as the case may be, by a reasoned and speaking order, as expeditiously as possible, preferably, within six weeks from the date of production of a copy of this order, in accordance with law.

Order Date :- 4.2.2021

Amit Mishra